

Sri Krishna Chikitsalaya v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 September 2019 · WRIT - C No. 29638 of 2019 · **Petition disposed of; reasoned Clause 6.5 order directed within six weeks; 10.6.2019 bill not to be pressed pending that order.**

HEADNOTE

On a concession that the distribution licensee had passed no written order while deciding a billing matter under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the Allahabad High Court disposed of the writ by directing the concerned authority to pass a reasoned speaking order within six weeks, supply a copy to the consumer, and comply with an earlier writ order in letter and spirit. The electricity bill dated 10 June 2019 was directed not to be pressed into service and to remain subject to that speaking order.

FACTUAL SUMMARY

Sri Krishna Chikitsalaya challenged an electricity bill dated 10 June 2019. The respondents said the bill had been corrected pursuant to an earlier High Court order of 13 December 2018 in a previous writ by the same consumer. The petitioner argued that the authority had passed no written order while deciding the matter under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Counsel for the licensee conceded there was no order in black and white.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

reasoned speaking order on Clause 6.5 billing decision

HOLDING

Where the licensee concedes that no written order was passed while deciding a billing grievance under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the writ court will dispose of the petition by directing the concerned authority to pass a reasoned speaking order within a fixed time and supply a copy to the consumer, and by directing that an electricity bill issued in the meantime (here, 10.6.2019) shall not be pressed into service and shall remain subject to that order. The Court also directed compliance in letter and spirit with its earlier order, dated 13.12.2018 in the recitals and 13.12.2019 in the operative part. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On a concession that the distribution licensee had passed no written order while deciding a billing matter under Clause 6.5 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 10.6.2019

Bill not to be pressed and made subject to the speaking order directed under Clause 6.5; merits of the bill left to that order. ¶ 1